

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable Shari Silver
Judge of the Superior Court
County of Los Angeles
900 Third Street
Los Angeles, CA 91340

Re: Palomino, Alejandro
CDC No.: G21200
Case No.: PA056138-01
Date of Sentence: 06/20/2008

Dear Honorable Shari Silver:

The purpose of this letter is to provide the court with authority to resentence Alejandro Palomino pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Palomino was sentenced in 2008, and was convicted of section 245, subdivision (A)(1), ASSAULT W/DEADLY WEAPON/INS. The trial court sentenced inmate Palomino on 06/20/2008. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Palomino's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Palomino's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Information/Complaint
Minute Order

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES, NORTH VALLEY DISTRICT										
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: PALOMINO, ALEJANDRO AKA: CII NO.: A23118820 BOOKING NO.: 9110228	DOB: 07-10-83 ☐ NOT PRESENT	<table border="1" style="width:100%; border-collapse: collapse;"> <tr> <td style="width:60%;">PA056138-01</td> <td style="width:40%;">-A</td> </tr> <tr> <td></td> <td>-B</td> </tr> <tr> <td></td> <td>-C</td> </tr> <tr> <td></td> <td>-D</td> </tr> </table>	PA056138-01	-A		-B		-C		-D
PA056138-01	-A									
	-B									
	-C									
	-D									
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT CORRECTED ☒ AMENDED ABSTRACT										
DATE OF HEARING 06-20-08	DEPT. NO. NV-F	JUDGE SHARI SILVER								
CLERK K. ELLIS	REPORTER A. DEVER	PROBATION NO. OR PROBATION OFFICER X-1960946 ☐ IMMEDIATE SENTENCING								
COUNSEL FOR PEOPLE B. K. BLANCHARD DA		COUNSEL FOR DEFENDANT E. W. MATTERS PVT. ☐ APPTD.								

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 ____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Under 90 Days)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
3	PC	245 (D)(2)	ASSLT OFCR/FIREFGHTR W/RIFLE	06	04-02-08	X			U							9	0
4	PC	245 (D)(2)	ASSLT OFCR/FIREFGHTR W/RIFLE	06	04-02-08	X			M	X	X					2	4
5	PC	245 (A)(1)	ASSAULT W/DEADLY WEAPON/INS	06	04-02-08	X			M		X					1	0
6	PC	245 (A)(1)	ASSAULT W/DEADLY WEAPON/INS	06	04-02-08	X			M		X					1	0
7	PC	245 (B)	ADW SEMIAUTOMATIC FIREARM	06	04-02-08	X			M		X					2	0
8	PC	245 (B)	ADW SEMIAUTOMATIC FIREARM	06	04-02-08	X			M		X					2	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
3	12022.53 (C) PC	20 YRS	186.22(B)(C) PC	10 YRS			30 0
4	12022.53 (C) PC	80 MOS.	186.22(B) PC	40 MOS			10 0
6	12022.7 PC	12 MOS	186.22(B) PC	40 MOS			4 4
7	186.22 (B) PC	20 MOS					1 8
8	12022.5 PC	1 YR 4 MOS	186.22 (B) PC	40 MOS			4 8

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 68 0

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: PALOMINO, ALEJANDRO			
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			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
 Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$7,042.83 ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
 Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in Item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$20.00 per PC 1465.8.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

** VICTIM: COMPENSATION BOARD. ** RESTITUTION IS TO BE PAID JOINT AND SEVERAL WITH THE CO-DEFENDANT.

THE DEFENDANT IS ORDERED TO PROVIDE BUCCAL SWAB SAMPLES, A RIGHT THUMB PRINT, A FULL PALM PRINT IMPRESSION OF EACH HAND, ANY BLOOD SPECIMENS OR OTHER BIOLOGICAL SAMPLES AS REQUIRED BY THIS SECTION FOR LAW ENFORCEMENT IDENTIFICATION.

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
 Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: HIS

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
 b. ☐ at resentencing per decision on appeal.
 c. ☐ after revocation of probation.
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)
 e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	826	719	☐ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
06-20-08		DMH	CDCR CRC

15. The defendant is remanded to the custody of the sheriff, ☒ forthwith ☒ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE D.ROMERO	DATE 04-22-11
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